

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-400-STEP Participation
	Document No./Name	P-440-STEP Federal Participation Rates and Requirements
	Effective Date	January 1, 2021

I. STATEMENT OF POLICY

According to state law, all work-eligible recipients of FITAP are required to participate in the STEP Program. However, there are types of FITAP cases when a recipient would not count when calculating the federal participation rate.

EXEMPTIONS

The following types of FITAP cases are exempt when calculating federal participation rates:

- FITAP families including a parent personally providing care for a child under age one living in the home, if that parent's legal spouse and/or the other parent of the child is not also in the home.
- FITAP families including a caretaker relative other than a parent personally providing care for a child under age one living in the home, if the caretaker's legal spouse is not in the home.
- FITAP families including a parent who is providing care for a disabled family member living in the home as long as medical documentation is provided to support the need for the parent to remain in the home to care for the disabled family member.
- FITAP families that do not have an adult parent, an adult caretaker relative, or a minor parent head of household included in the FITAP certification because that individual receives SSI or is an alien who is ineligible due to immigration status.

II. PROCEDURES

The participation rate exemption for caring for a child under age one is limited to a total of 12 months per individual. The earliest month that this exemption can be applied is the month following the birth of the child, and the latest month that this exemption can be applied is the month of the child's first birthday.

The participation rate exemption for caring for a disabled family member living in the home must be supported by medical documentation stating the incapacity must be of a debilitating nature and expected to last for at least 30 days.

The FSA *** must be completed. **** It should include a plan for the recipient to return to or begin participation in appropriate work activities based on medical documentation of the duration of the incapacity.

Although these FITAP families are exempt from the federal participation rate calculations, work-eligible families are not exempt from participation in assigned activities, including the Parenting Skills Program.

These participation rate exemptions must be verified, documented, and re-evaluated when the condition that required the exemption is expected to end.

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ALL FAMILIES RATE AND REQUIREMENTS

A monthly average of 30 participation hours per week is required for a FITAP family to be counted toward the federal All Families participation rate. (See the following sections P-442-1 and P-442-2 for additional criteria).

Individual participation exceeding an average of 30 hours per week will not increase the All Families rate. If deemed feasible and necessary by the worker to expedite the client's progress, or if required by the provider or employer, participation hours exceeding the 30 hours per week may be required. However, additional hours cannot be required for the sole purpose of providing a buffer for possible absences in the month. If hours exceeding the 30 hours are required but the participant only meets the 30-hour requirement, he cannot be sanctioned for failure to comply unless the hours exceeding the 30 hours are required by the provider or employer and are specified in the Family Success Agreement. ***

For the federal All Families participation rate, participation in the following activities is countable for the first 20 weekly hours of participation:

- Employment, including Unsubsidized Employment, Subsidized Public Sector Employment, and Subsidized Private Sector Employment
- Vocational Education (not to exceed 12-month limit)
- Job Search and Job Readiness not to exceed 120 or 180 hours and not to exceed 120 hours for a work-eligible individual with a 20 hour average weekly requirement or 180 hours for a work-eligible individual with a 30 hour average weekly work requirement.
- On-the-Job Training (OJT)
- Work Experience Program (WEP)
- Community Service Programs
- Provision of Child Care Services to an Individual who is Participating in a Community Services Program

For the federal All Families participation rate, participation in the following activities is countable for hours above the first 20 weekly hours of participation:

- Satisfactory Attendance at a Secondary School or in a Course of Study Leading to a Certification of General Equivalence Diploma (GED) * or High School Equivalency Test (HiSET), if the parent/caretaker does not have a high school diploma, GED, or HiSET **
- Education Directly Related to Employment, if the parent/caretaker does not have a high school diploma, *** GED, * or HiSET **
- Job Skills Training Directly Related to Employment

The All Families participation rate is calculated by dividing the number of countable FITAP families (where one adult participates the required number of hours per week in countable activities) by the total number of non-exempt FITAP families. Families that are granted good cause are included in the participation rate calculations.

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FITAP families with work-eligible parents (not caretaker relatives) who are not included in the FITAP certification are also included in the All Families participation rate, unless that parent is not included because he or she receives SSI or is an alien who is ineligible due to immigration status. Refer to [C-121-FITAP](#).

Beginning October 2001, the state's required All Families participation rate is 50%.

STEP DEEMED TEEN COUNTABLES

Deemed Teen Countables are defined as FITAP recipients (married or single) who:

- Are head of household, and
- Are under age 20 (recipients are considered under age 20 in the month of their 20th birthday), and
 - Maintain satisfactory attendance and satisfactory progress, as defined and verified by the educational institution attended, in Secondary Education/GED/* HiSET, ** or
 - Participate in Education Directly Related to Employment for a monthly average of 20 hours per week and maintain satisfactory progress.

Single-parent families are deemed to be countable for the federal All Families participation rate if at least one recipient in that family meets the Deemed Teen Countable definition.

All Families participation requirements described in P-440, (Deemed Single-Parent Families and Single Minor Parents) apply to teen parents who are head of household and do not meet the criteria for Deemed Teen Countables.

STEP DEEMED SINGLE-PARENT FAMILIES

A single parent/caretaker relative with a child under age six is deemed to be countable for the All Families participation rate if that parent/caretaker is engaged in an allowable work activity for a monthly average of 20 hours per week. For this purpose, allowable work activities include those that count for the first 20 hours of weekly participation.

Individual participation exceeding an average of 20 hours per week for these participants will not increase the All Families rate. If deemed feasible and necessary by the worker to expedite the client's progress, or if required by the provider or employer, participation hours exceeding the 20 hours per week may be required. However, additional hours cannot be required for the sole purpose of providing a buffer for possible absences in the month. If hours exceeding the 20 hours are required but the participant only meets the 20-hour requirement, he cannot be sanctioned for failure to comply unless the hours exceeding the 20 hours are required by the provider or employer and are specified in the Family Success Agreement. ***

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STEP GOOD CAUSE FOR SINGLE-PARENT FAMILIES

A single parent/caretaker relative who is personally providing care for a child under age six may claim good cause for failure or refusal to participate in an assigned work activity or for refusal to accept employment if the participant is unable to obtain needed child care for one of the following reasons:

- Unavailability of appropriate child care within a reasonable distance from their home or work site,
- Unavailability or unsuitability of child care by a relative or under other arrangements, or
- Unavailability of appropriate and affordable formal child care arrangements.

The condition for claiming good cause for failure or refusal to participate must be verified, documented, and re-evaluated when the condition is expected to end and at every redetermination. The participant must be notified of any change in participation requirements.

This special provision for single parents/caretakers applies only if the parent/caretaker's legal spouse and/or the other parent of the child are not in the home.

STEP SINGLE MINOR PARENTS

If a single parent/caretaker is under age 18, has a child at least 12 weeks of age, and does not have a high school diploma or its equivalent, *** they** must participate in a Secondary/GED/**HiSET** activity or in an alternative educational or training program approved by the **STEP Coach**. ****** This federal provision applies to all FITAP minor parents, regardless of whether they are head of household or not.

This special provision for single parents/caretakers applies only if the parent/caretaker's legal spouse and/or the other parent of the child is not in the home.

STEP PARTICIPATION RATE CALCULATIONS

To determine the monthly number of hours that an individual or a family must participate in order to be countable for federal participation rate purposes:

- Divide the number of calendar days in the month by 7 to obtain the conversion factor.
- Multiply the conversion factor by:
 - 19.50 (All Families Rate for single-parent families with a child under age 6 and for first 20 weekly hours of participation),
 - 29.50 (All Families Rate),

The following chart indicates the number of monthly participation hours required to be countable for federal participation rate purposes:

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#Days in Month	Single Parent with Child <6 (20 Hrs/Wk)	All Families Rate (30 Hrs/Wk)
31	87	131
30	84	127
29	81	123
28	78	118

LIMITATIONS FOR VOCATIONAL EDUCATION AND DEEMED TEEN COUNTABLES

The total number of countable participants in Vocational Education, combined with the total number of Deemed Teen Countables, cannot exceed 30% of the number of countable families.

For this 30% calculation, a countable participant in Vocational Education is defined as a countable participant who would not meet the minimum monthly participation requirements without the Vocational Education hours.

Example: In a 31-day month, a client participates 120 hours in WEP and 20 hours in Vocational Education. He is considered a countable participant in Vocational Education for this 30% calculation since he would not meet the minimum requirements without the Vocational Education hours. If this same client had participated 135 hours in WEP and 50 hours in Vocational Education, he would not be considered a countable participant in Vocational Education for this 30% calculation since he would meet the minimum requirements without the Vocational Education hours.

OTHER FEDERAL REQUIREMENTS

Parents or caretakers who have received FITAP cash assistance for 24 months since January 1997 (whether consecutive or not) are required to participate in an approved STEP activity (whether countable or not) in order to retain FITAP eligibility. This requirement is separate and apart from the 24-month time limit for receipt of FITAP cash assistance. The only exceptions to this requirement are recipients who meet the good cause criteria described in section P-440 (Good Cause for Single-Parent Families) or the exemption criteria described in Section P-440 (Exemptions).

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

Code of Federal Regulations, Title 45: [Parts 261, 262, 263, and 265](#)

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[TANF Final Rule 2008](#)

[Act 58, 2003 Reg. Session.](#)

[LAC 67:III.5711](#)

[LAC 67:III.5713](#)

[LAC 67:III.5717 PROGRAM SPECIALIST--SOCIAL SERVICES](#)